

HB 2249 -- ALLERGIES IN CHILD CARE FACILITIES

SPONSOR: Ealy

This bill adds child care facilities to the list of authorized entities for which a physician may prescribe an epinephrine delivery device.

The bill also establishes "Elijah's Law" and requires licensed child care providers to adopt a policy on allergy prevention and response, with priority given to addressing deadly food-borne allergies. The policy must contain elements specified in the bill and be adopted before July 1, 2028.

The Department of Elementary and Secondary Education must develop a model policy or policies on allergy prevention and response before July 1, 2027.

This bill is similar to HB 2490; and HB 2365 (2026); and HCS HBs 222 & 580 (2025).